

Somerset County Council Act, 1960

8 & 9 ELIZ. 2 Ch. xxvii

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CHAPTER xxvii

An Act to confer further powers on the Somerset County Council and in certain cases on the local authorities in the county of Somerset in relation to highways and the local government and improvement of the county to enact provisions with respect to finance and superannuation and for other purposes.

[29th July 1960.]

WHEREAS—

(1) It is expedient that further and better provision should be made with reference to highways and for the local government and improvement of the administrative county of Somerset and that the powers of the county council of that administrative county (hereinafter referred to as “ the Council ”) and of the local authorities within that administrative county should be enlarged and extended as by this Act provided:

(2) The Council have by a lease dated the first day of August nineteen hundred and fifty-eight and made between the Somerset Archaeological Society of the first part the trustees of the said society of the second part and the Council of the third part taken a lease of all those buildings apartments lawns and premises situate in the borough of Taunton and known as Taunton Castle and the Somerset County Museum and the Wyndham Hall for a term of forty-nine years from the first day of April nineteen hundred and fifty-eight upon the terms and conditions therein expressed but doubts have arisen as to the validity of the said

lease and it is expedient to confirm the legal interest of the Council in and their powers in relation to the said property and to confer further powers on the Council with respect thereto:

(3) It is expedient to enact provisions with respect to finance and superannuation:

(4) It is expedient that the other provisions contained in this Act be enacted:

(5) The purposes of this Act cannot be effected without the authority of Parliament:

(6) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I

PRELIMINARY

- Short title. 1. This Act may be cited as the Somerset County Council Act 1960.
- Division of Act into Parts. 2. This Act is divided into Parts as follows:—
Part I.—Preliminary.
Part II.—Highways.
Part III.—Finance and superannuation.
Part IV.—Miscellaneous.
Part V.—General.
- Interpretation. 3.—(1) In this Act unless otherwise expressly enacted or unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—
“ Act of 1933 ” means the Local Government Act 1933;
“ Act of 1936 ” means the Public Health Act 1936;
“ Act of 1959 ” means the Highways Act 1959;
“ bridleway ” has the meaning assigned to it by section 295 of the Act of 1959;
“ claimed county road ” has the meaning assigned to it by section 4 of the Act of 1959;
“ code of 1892 ” has the meaning assigned to it by section 295 of the Act of 1959;

“contravention” includes a failure to comply and
“contravene” shall be construed accordingly;

“Council” means the county council of the county;

“county” means the administrative county of Somerset;

“county fund” means the county fund of the Council;

“county road” has the meaning assigned to it by section 295
of the Act of 1959;

“daily fine” means a fine for each day on which an offence
is continued after conviction thereof;

“district” means a borough or an urban or rural district in
the county;

“enactment” includes an enactment in this Act or in any
general or local Act and any order byelaw or regulation
for the time being in force within the county or within a
district;

“footpath” has the meaning assigned to it by section 295
of the Act of 1959;

“functions” includes powers and duties;

“highway authority” means—

(a) in the case of a trunk road the Minister or
with his consent the authority who are for the time
being acting as his agent under the Act of 1959 with
respect to that trunk road;

(b) in the case of a county road except a claimed
county road and in the case of any other road for
the time being maintained by the Council the Council;
and

(c) in the case of any other highway (not being a
highway repairable by the British Transport Com-
mission) the local authority for the district in which
the highway is situate;

“highway maintainable at the public expense” has the
meaning assigned to it by section 295 of the Act of 1959;

“land” includes any interest in land and any easement or
right in to or over land;

“local authority” means the council of a district;

“magistrates’ court” has the same meaning as in
subsection (1) of section 124 of the Magistrates’ Courts
Act 1952;

“Minister” means—

(a) for the purposes of Part III (Finance and
superannuation) of this Act the Minister of Housing
and Local Government;

(b) in all other cases the Minister of Transport;

PART I
—cont.

- “owner” means the person for the time being receiving the rack-rent of the premises in connection with which the word is used whether on his own account or as agent or trustee for any other person or who would so receive the same if those premises were let at a rack-rent;
- “parish council” means the parish council of a rural parish in the county or where there is no separate parish council the parish meeting of such parish;
- “premises” includes messuages buildings lands easements and hereditaments of any tenure;
- “rural district” means a rural district in the county;
- “rural district council” means the council of a rural district;
- “street” has the meaning assigned to it by section 295 of the Act of 1959;
- “street works” has the same meaning as in Part IX of the Act of 1959;
- “street works authority” has the same meaning as in Part IX of the Act of 1959;
- “structure” means a wall fence hoarding or similar erection but for the purpose of this definition the expression “wall” does not include a wall forming part of the main structure of a permanent building;
- “trunk road” has the meaning assigned to it by section 295 of the Act of 1959;
- “urban district” means a borough or an urban district in the county;
- “verge” includes land situate between two carriageways and any part of a street which is not a carriageway footway or cycle track.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied¹ extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

HIGHWAYS

Application
of section 144
of Act of
1959 to
Council.

4. The Council may exercise the powers of section 144 of the Act of 1959 in relation to any land adjoining a county road (not being a claimed county road) in the county as if they were the local authority in whose area the road is situated.

5.—(1) No person (except in the execution of some act which he has lawful authority to perform) shall—

PART II
—cont.

Defacing of
road surface
or direction
post.

(a) soil or deface the surface of any county road in the county or any wall fence post or other structure or erection or any tree in or adjoining any such road by inscribing or painting thereon any letter sign device or other mark;

(b) remove deface or obscure any direction post erected under section 7 (As to direction posts relating to rights of way) of this Act.

(2) If there is any contravention of any of the provisions of the foregoing subsection—

(a) the highway authority as regards any such contravention; or

(b) the local authority as regards the wall fence post structure erection or tree; or

(c) the district or parish council by whom the direction post is maintained as regards the direction post;

may cleanse or reinstate the same and remove any such letter sign device or other mark.

(3) (a) Any person who contravenes the provisions of subsection (1) of this section shall be liable to a fine not exceeding forty shillings and the highway authority the local authority and the district or parish council (as the case may be) may recover from him the expenses incurred by them in consequence of such contravention.

(b) When exercising the powers of subsection (2) of this section an authority or district or parish council as between themselves and the person by whom the provisions of subsection (1) of this section are contravened shall not in the absence of negligence on the part of the authority or district or parish council or of any person employed by them be liable for any damages for or in respect of or consequent upon the exercise of those powers and any such damages paid by the authority or district or parish council in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by the person by whom the said provisions were contravened.

(4) Any byelaw relating to the purposes of this section made in pursuance of section 249 of the Act of 1933 and in force in the county or any part thereof shall cease to apply to a county road.

6.—(1) If any tree or structure or any part thereof shall fall on or across any trunk or county road in the county so that obstruction or danger is caused or is likely to be caused to persons or vehicles using such road the highway authority may remove and pending

Removal of
trees etc.
from
highways.

PART II
—cont.

such removal may fence light and watch the same and may subject to the next following subsection recover the reasonable cost of such removal fencing lighting and watching from the owner thereof.

(2) Proceedings under this section for the recovery of the cost of removing fencing lighting or watching any tree or structure or any part thereof shall be taken in a magistrates' court and in any such proceedings or on the application of the owner of the tree or structure to the court the court may if they are satisfied that the obstruction or danger either in whole or in part resulted from an act or omission by some person other than the owner or could not reasonably have been anticipated or guarded against make such order concerning the cost or its apportionment as appears to the court to be just:

Provided that the court shall not order the cost or any part thereof to be borne by any person other than the owner unless the court is satisfied that that other person has had due notice of the proceedings and an opportunity of being heard.

(3) The provisions of section 276 of the Act of 1936 (relating to the sale of certain materials) as applied by this Act shall for the purposes of this section have effect as if—

- (a) instead of the local authority the section referred to the highway authority as defined in section 3 (Interpretation) of this Act; and
- (b) the expression "materials" included a tree or part thereof:

Provided that the highway authority may recover under subsection (1) of this section any balance of the cost outstanding after exercising their powers under section 276 of the Act of 1936.

As to
direction
posts relating
to rights of
way.

7.—(1) Any rural district council or parish council may erect and maintain direction posts of such size and type as may be approved by the Council in or adjacent to footpaths and bridleways with the consent of the owner in fee simple of the land in which it is proposed to erect the same and of any person having the control or management of such land.

(2) The exercise of the powers conferred by this section shall be subject to the provisions of the Road Traffic Acts 1930 to 1956 and to any regulations made or any general or other direction given by the Minister in pursuance of the said provisions.

Exercise by
Council of
powers with
respect to
county roads.

8.—(1) The provisions of the Act of 1959 hereinafter referred to in this section shall apply in relation to—

- (a) any county road (not being a claimed county road) in the county; and

(b) any road constructed by the Council or by some other person by agreement with them which when completed is intended to become a county road;

and shall have effect as if the Council were the local authority in whose area the road is situated.

(2) The provisions of the Act of 1959 referred to in this section are section 74 subsection (7) of section 131 section 132 and subsections (1) to (4) of section 154.

(3) The Council shall not in the exercise of the powers of this section perform or discharge any of the functions under the provisions mentioned in this section in any borough or urban district except at the request of and by agreement with the local authority of such district and during the continuance of such agreement such functions shall cease to be exercisable by such local authority in relation to the road to which the agreement applies:

Provided that nothing in this subsection shall prevent the Council from exercising any powers conferred on them by any other enactment.

(4) Any agreement made under the provisions of this section may relate to any one or more roads in a district.

9.—(1) No person (other than a person selling offering or exposing for sale or depositing for sale any food goods provisions articles or things at any market or fair for which a toll stallage or rent is payable) shall provide erect or place and use any shed hut shelter booth shop stall or other erection whether on wheels or not or any vehicle or any container used with or without a stall on the verge of any road to which this section applies or on any common land unenclosed moorland or other unenclosed land of whatsoever description adjacent to and within fifteen yards of a road to which this section applies for the purpose of selling offering depositing or exposing for sale any food goods provisions articles or things whatsoever other than newspapers.

Sale of food
and articles
on verges etc.

(2) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding forty shillings and to a daily fine not exceeding forty shillings.

(3) This section applies to such parts of the trunk roads A.4 A.36 A.38 and A.303 and the classified county roads A.30 A.37 A.39 A.358 A.361 A.368 A.370 A.371 A.372 and A.396 as are situate within the county and to any other county road or part of a county road in the county to which the Minister may by order on the application of the highway authority apply this section.

PART II
—cont.

(4) Nothing in this section shall apply to—

- (a) any shed hut shelter booth shop stall or other erection or any vehicle provided erected or placed on private property by or with the consent of the owner of such property;
- (b) any building erected or work constructed with the consent of the Minister of Agriculture Fisheries and Food in pursuance of section 194 of the Law of Property Act 1925 or of any other statutory provision or any scheme made pursuant to a statute; or
- (c) the sale of food goods provisions articles or things from a vehicle when in use solely for the purpose of itinerant trading with the occupants of premises adjoining any verge or common land moorland or other land to which this section applies.

(5) In this section—

- (a) the expression “ container ” includes any basket pail tray package or receptacle of any kind whether open or closed;
- (b) the expression “ private property ” does not include common land or unenclosed moorland;
- (c) the expression “ vehicle ” means a vehicle of any description drawn or propelled along roads whether by animal or mechanical power.

Carriage-
crossings over
verges etc.

10.—(1) Where planning permission has been given or has been deemed to have been given pursuant to the Town and Country Planning Act 1947 to a means of access which involves the construction of a carriage-crossing across a verge ditch or footway to land adjacent to any county road in the county the highway authority may at any time after the development has commenced give notice to the owner or occupier of the premises that they propose to construct the carriage-crossing.

(2) Where the highway authority give notice under the foregoing subsection the provisions of section 155 of the Act of 1959 (which relates to carriage-crossings over footways) shall apply to the construction of the carriage-crossing subject to any necessary modifications and for the purposes of such application the highway authority shall be deemed to be the appropriate authority and the notice shall be deemed to be a notice given for the purposes of paragraph (a) of subsection (1) of the said section 155.

11.—(1) Where in consequence of any order or requirement made under sections 159 163 and 166 of the Act of 1959 any lands are added to an existing highway maintainable at the public expense such lands if so resolved by the Council shall for the purposes of the code of 1892 in any rural district be deemed to be a street not maintainable at the public expense and the Council may apportion the whole or any portion of the expenses of any street works carried out in respect of such street or any part of such street on the premises of which such lands formed part immediately prior to their addition to the highway as aforesaid:

PART II

—cont.

Application
of code of
1892 to parts
of public
street.

Provided that such expenses shall not include any expense which subsection (4) of section 163 of the Act of 1959 requires to be borne by the local authority.

(2) For the purposes of the code of 1892 as applied by this section a canal or inland navigation shall not be deemed to have direct communication with a towpath solely by reason of its being adjacent thereto.

12.—(1) Where any street works in the county have been completed by the Council but the Council are unable to recover the amount due from the owner of any premises or otherwise under the code of 1892 or the provisions of a local Act relating to street works whichever shall be the appropriate enactment by reason of the fact that such owner is unknown and cannot after diligent inquiry made when the said amount becomes due and at reasonable intervals thereafter be found the Council may at any time after the expiration of twelve years from the date when the said amount becomes due apply to the county court and that court may on the receipt of such application and on being satisfied that the provisions of this subsection have been complied with make an order vesting the said premises in the Council absolutely and thereupon the Council may appropriate the said premises subject to and in accordance with the provisions of section 163 of the Act of 1933 as if the said premises were land which was not required for the purpose for which it was acquired.

Recovery of
street works
charges
where owner
unknown.

(2) Where the county court make an order under subsection (1) of this section the court shall nominate a surveyor for determining the value of the said premises and such surveyor shall determine the same accordingly and shall annex to his valuation a declaration in writing subscribed by him of the correctness thereof and the Council shall thereupon deposit a sum equal to the amount of such valuation after deduction of the amount of the final apportionment in respect of the said premises with interest thereon for a period of six years at the rate of five per centum per annum or at such other rate as may have been fixed by order of the Minister of Housing and Local Government under section 212 of the Act of 1959 together with all costs and expenses reasonably incurred by the Council.

PART II
—cont.

(3) Any sum to be deposited under subsection (2) of this section shall be deposited in accordance with section 76 of the Lands Clauses Consolidation Act 1845 as if it was a sum awarded to be paid to an owner who cannot be found and as if the Council were the promoters of an undertaking and such sum shall be applied in accordance with section 78 of the said Act.

(4) The powers conferred by subsection (1) of this section shall be exercisable by the Council in addition to any existing rights powers and remedies for the recovery of expenses and shall be exercisable by the Council in respect of all street works whether completed before or after the passing of this Act.

Powers as to
private
streets.

13.—(1) The Council at their own expense may execute urgent repairs in any street or part of a street in any district which is dedicated to the public use but is not a highway maintainable at the public expense.

(2) The exercise by the Council of their powers under this section shall not prejudice their powers under any statutory provision for the time being in force in the county relating to street works or private street improvement expenses or under section 204 of the Act of 1959.

(3) The Council shall only exercise the powers of this section in districts in which they are the street works authority.

PART III

FINANCE AND SUPERANNUATION

Power to
borrow.

14.—(1) The Council may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority such sums as may be necessary for the payment of the costs charges and expenses of this Act;

and subject to the provisions of this section Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Council shall repay sums borrowed under paragraph (b) of the preceding subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

15.—(1) The Council may establish a fund to be called “ the insurance fund ” with a view to providing a sum of money which shall be available for making good all such losses damages costs and expenses as may from time to time be specified in a resolution of the Council (in this section referred to as “ the specified risks ”).

(2) The establishment of an insurance fund under this section shall not prevent the Council from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) In each financial year after the establishment of the insurance fund the Council shall pay into that fund either—

- (a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Council fully insured in some insurance office of good repute against the specified risks; or
- (b) if the Council insure in some insurance office against the whole or part of all or any of the specified risks such sum as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Council may (if they think fit) discontinue the yearly payments to the fund but if the fund is at any time reduced below the prescribed amount the Council shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount.

(5) The Council shall provide the yearly payments aforesaid by contributions from the revenue moneys of the county fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking department or service of the Council which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in respect of the specified risks all moneys for the time being standing to the credit of the fund shall (unless applied in any other manner authorised by any enactment) be invested in any of the investments specified in paragraphs (a) to (g) of subsection (1) of section 17 (Investment of superannuation fund) of this Act subject to the provisions of the proviso to the said subsection (1) and of the provisions of subsection (3) of the said section 17 which shall

PART III
—cont.

accordingly apply for the purposes of this section as if for references to the superannuation fund maintained by the Council there were substituted references to the insurance fund.

(b) The interest and other annual proceeds received by the Council in respect of such investments shall be carried to the county fund.

(c) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Council shall in every year so long as the fund is less than the prescribed amount carry to the credit of that fund out of the revenue moneys of the county fund an amount equal to the interest and other annual proceeds carried to the county fund in pursuance of the last foregoing paragraph.

(d) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Council in respect of or on investments forming part of the insurance fund and carried to the county fund may be apportioned in the accounts of the Council between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) For the purposes of this section the Council may if they deem it expedient include in the specified risks risks of accident to any teacher caretaker or other person employed in any voluntary school in the county.

(8) (a) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Council in respect of the specified risks in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Council may with the sanction of the Minister borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums so borrowed and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the county fund and charged in the accounts of the Council under the separate headings or divisions in respect of such undertakings departments or services of the Council and in such proportions as the Council may determine having regard to the risks through which such deficiencies arise.

(9) In the event of the insurance fund ceasing to be required to meet losses damages costs and expenses in respect of the specified risks the insurance fund may be carried to and form part of any capital fund established by the Council under section 1

of the Local Government (Miscellaneous Provisions) Act 1953 or (if the Council so determine) shall be applied in such other manner as the Minister may approve towards the discharge of any debt of the Council or otherwise for any purpose for which capital money may properly be applied.

PART III
—cont.

(10) In this section—

(a) the expression “financial year” means the period of twelve months commencing on the first day of April in any year and ending on the thirty-first day of March in the next following year;

(b) the expression “insurance office” means—

(i) an insurance company; or

(ii) an underwriter being a member of an association of underwriters; and

(c) the expression “prescribed amount” means such sum as may from time to time be prescribed by the Council.

16.—(1) The Council may make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may apply to any such loans all or any of the provisions of this Act and the Act of 1933 in regard to the borrowing and repayment of money with or without modification and may make provision in regard to all matters incidental to the objects aforesaid. Scheme for equated periods.

(2) Any scheme made by the Council under this section shall have no force or effect until confirmed by the Minister who may confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act.

(3) Nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock or bonds existing at that time except with the consent of such mortgagee or holder.

(4) The loans referred to collectively in any scheme under general headings in accordance with a classification approved by the Minister may be consolidated and dealt with in the accounts of the Council as if the aggregate amount of the several loans relative to each heading were one loan raised under one statutory borrowing power and if approved by the Minister separate consolidations may be made of all or any of the loans included under such general headings.

PART III
—cont.

(5) Any scheme confirmed under this section may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

(6) In this section the expression “ statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any enactment or sanction of any government department made or given or to be made or given by authority of any enactment but does not include the power to borrow by way of temporary loan or overdraft which is conferred by paragraph (a) of subsection (1) of section 215 of the Act of 1933.

Investment
of super-
annuation
fund.

17.—(1) In its application to the Council subsection (3) of section 21 of the Local Government Superannuation Act 1937 shall have effect as if for the obligation to invest as mentioned in that subsection moneys forming part of but not for the time being required to meet payments to be made out of the superannuation fund maintained by the Council under that Act there were substituted an obligation to invest such moneys as follows (namely):—

- (a) in or upon any investments authorised by section 1 of the Trustee Act 1925 but without the limitations imposed by the proviso in subsection (1) of section 2 of the said Act or in or upon any other investments for the time being authorised by law for the investment of trust funds; or
- (b) in or upon any of the stocks funds or securities of any dominion commonwealth union dependency or colony forming part of the British Commonwealth of Nations or any province or state having a separate local legislature and forming part of any such dominion commonwealth union dependency or colony; or
- (c) in or upon any of the stocks bonds mortgages or securities of any municipality or county or district council or local or public authority or board in the United Kingdom or in any such dominion commonwealth union dependency colony province or state as aforesaid authorised under any general or special Act of the United Kingdom Parliament or of the legislature concerned to issue the same; or
- (d) in or upon any stocks shares bonds mortgages or securities the capital whereof or a minimum rate of dividend or interest whereon is guaranteed by the

United Kingdom Government or by the government of any such dominion commonwealth union dependency colony province or state as aforesaid; or

- (e) in or upon the bonds debentures debenture stock mortgages obligations or securities or the guaranteed or preference or ordinary stock or shares or ordinary preferred or deferred or other stock or shares of any company registered or incorporated in the United Kingdom or in any such dominion commonwealth union dependency colony province or state as aforesaid being stock or shares which are at the time of making the investment quoted on any recognised stock exchange; or
- (f) in the purchase of freehold ground rents or freehold or leasehold land messuages tenements and hereditaments within the United Kingdom provided that as regards leaseholds the term thereof has at the time of making the investment at least sixty years to run; or
- (g) upon the security of freehold property freehold ground rents land charges or rentcharges by way of first mortgage up to the limit of two-thirds of the value thereof;

with power of varying such investments from time to time by sale and reinvestment or otherwise:

Provided that the investment of such moneys as aforesaid in any investment of the nature specified in paragraph (e) of this subsection shall be subject to the following qualifications:—

- (i) No investment shall be made in any company which has not paid a dividend of at least five per centum on the ordinary stock or shares of the company for each of the four years immediately preceding the date of investment or if the company has been incorporated or has been trading for less than four years before that date unless—

(A) the company has paid such dividend for each of the years since incorporation or commencement of trading as the case may be; or

(B) in the case of a company which has not been incorporated or trading for at least one year before the date of investment but which has been formed by the amalgamation of other companies each of those other companies has paid a dividend of at least five per centum on its ordinary stock or shares for each of the four years immediately preceding the date of the amalgamation;

- (ii) No investment shall be made at any time when the value of all the investments made under the said paragraph (e)

PART III
—cont.

which form part of the superannuation fund equals or exceeds one-half of the total value of the assets of that fund;

(iii) No investment shall be made in securities transferable by delivery.

(2) All costs charges and expenses incurred by the Council in investing moneys forming part of the superannuation fund maintained by the Council or otherwise in relation thereto shall be paid by the Council out of that fund.

(3) For the purposes of subsection (1) of this section the value of any investment of moneys forming part of the superannuation fund shall be treated as being the value of the investment at the time at which it was made.

(4) In this section the expression " recognised stock exchange " means any body of persons which is for the time being a recognised stock exchange for the purposes of the Prevention of Fraud (Investments) Act 1958.

Power to
Council to
lend money
to local
authorities
etc.

18.—(1) The Council may lend to any local authority and a local authority may borrow from the Council such money as the Council think fit to lend and as the local authority are authorised to borrow for the purpose for which such money is proposed to be borrowed and any money so lent shall be repaid to the Council by the local authority within the period prescribed by the sanctioning authority or otherwise for the repayment thereof.

(2) Any agreement under this section may be made by resolutions passed respectively by the Council and by the local authority.

(3) The Council may borrow such sums as may be required for the purpose of lending money to local authorities under this section and the provisions of Part IX of the Act of 1933 shall extend to money borrowed by the Council under this section as if it were borrowed under the said Part IX:

Provided that the consent of the sanctioning authority shall not be required.

(4) Every sum borrowed by the Council under this section shall be repaid within the period to expire not more than one year after that for which the same was lent by them to the local authority.

(5) The Council shall be entitled to charge such rate of interest in respect of any particular loan under this section as may be agreed between the Council and the borrower:

Provided that the Council shall ensure so far as it is reasonably practicable to do so that having regard to all the circumstances existing at the time the loan is made the rate of interest agreed is such that no loss is incurred by the Council in respect of the loan.

(6) All costs charges and expenses incurred by the Council in respect of any particular loan under this section shall be met by the borrower.

(7) In this section the expression "local authority" means the council of any county or county district and any authority being a local authority as defined by section 34 of the Local Loans Act 1875 and includes any river board or drainage board and any joint board if all the constituent authorities are such local authorities as aforesaid.

19.—(1) The Council may—

- (a) make reasonable payment for or in connection with refreshments for representatives of the Council local authorities or other bodies or for other persons attending conferences or meetings convened by the Council;
- (b) make reasonable payment for or in connection with the arrangement and conduct of ceremonies relative to or arising out of the statutory functions of the Council; and
- (c) pay reasonable expenses of providing tokens or mementoes for persons performing public ceremonies.

Expenses of
public
ceremonies
entertainment
etc.

(2) Section 1 of the Local Authorities (Expenses) Act 1956 shall in relation to the Council have effect as if—

- (a) "members of the Council" included members of committees or sub-committees of the Council; and
- (b) in paragraph (b) thereof after the words "distinguished persons" there were inserted the words "residing in or".

20.—(1) In this section words and expressions to which meanings are assigned in the Local Government Superannuation Acts 1937 to 1953 shall have the same respective meanings:

Provided that the expression "local authority" shall mean a local authority as defined in section 40 of the Local Government Superannuation Act 1937 the employees of which participate in the benefits of the superannuation fund maintained by the Council and shall include any voluntary organisation undertakers or body approved by the Minister the employees of which participate in the superannuation fund maintained by the Council by virtue of an agreement made or continued in force as if made under section 15 of the Local Government Superannuation Act 1953 or any local Act.

Exclusion of
certain
remuneration
and service
for super-
annuation
purposes.

PART III
—cont.

(2) The salary wages fees and other payments paid or made to a contributory employee employed whole time by the Council or any other local authority in respect of any part-time employment (additional to his ordinary whole-time employment) by the Council or that other local authority respectively—

- (a) as an instructor or other employee performing duties at or for the purposes of an evening institute or for evening classes; or
- (b) as a warden of or other employee performing duties at a youth centre; or
- (c) as a civil defence instructor; or
- (d) in any other capacity for the performance of duties which are not duties which he may be called upon to perform in his ordinary whole-time employment;

shall not be remuneration within the meaning of the Local Government Superannuation Acts 1937 to 1953 or of any other enactment affecting the superannuation fund maintained by the Council under those Acts and the service of any such contributory employee in any such part-time employment shall not be reckoned as service for any of the purposes of those Acts.

(3) Where a contributory employee engaged in part-time employment within the meaning of subsection (2) of this section makes application to them in that behalf the employing authority may determine that the said subsection (2) shall not apply in his case:

Provided that an application under this subsection shall be made to the employing authority—

- (a) in the case of a contributory employee engaged in part-time employment as aforesaid at the passing of this Act not later than six months thereafter; or
- (b) in any other case not later than six months after the date on which the contributory employee first takes up such part-time employment.

(4) Where before the passing of this Act any person has paid any contribution or contributions to the superannuation fund maintained by the Council which would not have been so paid if this section had been in force when such contribution or contributions were made the Council shall repay to such person a sum equal to the amount of such contribution or contributions together with compound interest thereon calculated to the date of repayment at the rate of three pounds per centum per annum with half-yearly rests.

PART IV

MISCELLANEOUS

21.—(1) The acquisition by the Council of their legal interest Taunton in the castle is hereby confirmed and authorised and the Council Castle and shall have power and shall be deemed always to have had power Somerset to provide and maintain in the castle a museum in accordance County Museum. with the following provisions of this section.

(2) The Council shall manage regulate and control the castle so long as they have a legal interest therein and for that purpose may—

- (a) fit up furnish and maintain the castle;
- (b) provide and maintain therein a museum and in connection therewith a library and lecture and reading rooms;
- (c) acquire therefor by purchase gift loan or otherwise books newspapers periodicals maps material and specimens of art and science and of historical archaeological and topographical interest and relating to social development generally and do all things necessary to display the same and such objects as they have already acquired and to restore or otherwise keep them in a proper state of preservation and repair;
- (d) compile print exhibit and sell catalogues of objects in the museum and literature and illustrations relating to the museum or the objects therein;
- (e) exchange sell or otherwise dispose of any objects vested in the Council for the purposes of the museum of which they have a duplicate or which they consider to be no longer appropriate to or required for the museum;
- (f) on such terms and subject to such conditions as they think fit lend any objects vested in them for the purposes of the museum to any gallery museum or exhibition and carry out work of restoration preservation and repair on any object for any gallery museum or person or borrow any objects from any gallery museum or person;
- (g) use the museum generally for educational purposes and in particular circulate any objects vested in them for the purposes of the museum to schools colleges and other educational establishments and otherwise for such purposes;
- (h) from time to time hold therein exhibitions lectures and meetings for any purpose in connection with museums or with the advance of art education science or literature

PART IV
—cont.

and make charges for admission thereto and provide and sell programmes of any such exhibitions lectures and meetings;

- (i) use the castle for any purpose incidental to the use as a museum and of any of their statutory functions as a local education authority library authority or authority responsible for the custody of records;
- (j) on such terms and subject to such conditions as they think fit let or allow to be used the castle or any part thereof for exhibitions lectures meetings or for such other purposes as they may deem proper;
- (k) accept gifts of money for or in relation to any of the purposes aforesaid;
- (l) at or in connection with the castle or at any exhibition lecture or meeting therein provide and sell refreshments of all kinds (other than intoxicating liquor) subject to the provisions of all enactments relating thereto;
- (m) enter into any agreement or arrangement for the provision and sale of refreshments as aforesaid;
- (n) do such other things as appear to them necessary or expedient for furthering the utility of and interest in the museum:

Provided that the powers conferred by this subsection of selling or otherwise disposing of or lending or transferring any object shall not be exercised—

- (i) in any manner inconsistent with any condition attached to any purchase gift or loan by virtue or in consequence of which that object was vested in the Council for the purposes of the museum; or
- (ii) in relation to an object on loan to the Council from the Somerset Archaeological Society without their approval.

(3) Any person who in the castle—

- (a) behaves in a disorderly manner;
- (b) uses violent abusive offensive or obscene language;
- (c) is guilty of conduct which causes or is likely to cause annoyance or disturbance to any person using the same;
- (d) bets or gambles; or
- (e) after proper warning persists in remaining therein beyond the hours fixed for the closing thereof;

shall be liable on summary conviction to a fine not exceeding five pounds.

(4) (a) The Council may make byelaws for all or any of the following purposes (that is to say):—

- (i) for regulating the use of the castle and of the contents thereof and for protecting the same and the fittings furniture and contents thereof from injury destruction or misuse;
- (ii) for enabling the officers and servants of the Council and persons authorised by the Council to exclude or remove from the castle persons committing any offence under the provisions of subsection (3) of this section or against byelaws or regulations made under this section.

(b) As respects byelaws made under this section the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Minister of Education.

(5) The Council may from time to time make regulations for all or any of the following purposes with respect to the castle (that is to say):—

- (a) for regulating the days on which the same may be opened and closed and the days hours and conditions of admission or exclusion thereto or therefrom or to or from any part or parts thereof and the conduct of the persons admitted;
- (b) for prescribing the conditions of the user of any part thereof and of any of the contents thereof;
- (c) for regulating the sale of refreshments therein;
- (d) for requiring from any person using the same any guarantee or security against the loss of or injury to any book or other article.

(6) The Council shall have power and shall be deemed always to have had power so long as they have a legal interest in the castle to enter into agreements with any person providing for the management and administration of any museum at the castle and the appointment and constitution of a governing body for that purpose and may contribute towards the expenses of such governing body and authorise any such governing body on such terms as they think fit to exercise any of the functions of the Council under this section on their behalf except the power to make byelaws.

(7) Any expenses incurred by the Council in relation to the castle from the first day of April nineteen hundred and fifty-eight shall be paid by the Council as general county expenses:

Provided that any such expenses which but for this section would not have been charged on the area of an independent library authority shall not be so paid without the concurrence of such authority.

PART IV
—cont.

(8) So long as the Taunton Corporation are a library authority under the Public Libraries Acts 1892 to 1919 nothing in this section shall authorise the Council to establish and maintain a public library for the borough of Taunton without the concurrence of the Taunton Corporation.

(9) In this section—

- (a) “the castle” means the buildings apartments lawns and premises situate in the borough of Taunton in the county known as Taunton Castle and the Somerset County Museum and the Wyndham Hall;
- (b) “independent library authority” means any library authority other than the Council exercising functions under the Public Libraries Acts 1892 to 1919 in any part of the county;
- (c) “the museum” means any museum established and maintained under this section; and
- (d) “the Taunton Corporation” means the mayor aldermen and burgesses of the borough of Taunton.

Publication
and
acquisition
of records
etc.

22.—(1) The Council may—

- (a) preserve arrange index classify exhibit and publish such records deeds and other documents of the Council or in their care or custody and of or relating to the county or such extracts from or copies of them or reference to their contents; and
- (b) purchase or otherwise acquire or accept the custody of such records deeds and other documents of or relating to the county;

as the Council may think to be of public interest.

(2) Nothing in this section shall affect the rights of any person under the law for the time being relating to copyright.

Deeds etc.
of apprentice-
ship.

23.—(1) In this section—

the expression “child in the care of the Council” means a person under the age of eighteen years who for the time being is either in the care of the Council under section 1 or subsection (4) of section 6 of the Children Act 1948 or committed to their care by an order of any court under the Children and Young Persons Act 1933 or the Matrimonial Proceedings (Children) Act 1958; and

the expression “deed of apprenticeship” includes any instrument by means of which such a person is apprenticed.

(2) The Council may in any deed of apprenticeship relating to a child in the care of the Council or in any document being an

assignment of or supplemental to such deed undertake the obligations of a guarantor and any other obligations and may fulfil such obligations notwithstanding that—

PART IV
—cont.

- (a) such obligations may continue beyond the date upon which the child will attain the age of eighteen years;
- (b) the child may cease to be a child in the care of the Council on or before such date; and
- (c) (in the case of a document being an assignment of or supplemental to such deed) the person apprenticed by such deed shall already have attained the age of eighteen years.

24.—(1) The Council may erect and maintain on any land held managed or controlled by the Council or on any open space or public place on or adjoining any highway in the county such weighbridges or weighing-machines and offices in connection therewith as they may consider necessary or desirable for the use of the public: Power to erect weigh-bridges.

Provided that the Council shall not make any such erection on any open space or public place adjoining any highway without the consent of the owner thereof.

(2) The Council may make such reasonable charges as they may determine for and in respect of the use of any such weighbridge or weighing-machine.

(3) Any person shall on payment of the proper charges in respect thereof be entitled to use any of the weighbridges or weighing-machines erected by the Council under the provisions of this section.

(4) The powers of this section shall not be exercised in such a manner as to obstruct or interfere with the access to or exit from any station wharf or depot of any railway canal inland navigation passenger road transport or road haulage undertakers.

(5) The Council shall not exercise the powers of this section in relation to a trunk road without the consent of the Minister.

(6) No power conferred upon the Council by the provisions of this section shall be exercised in such a manner—

- (a) as to be at variance with any trust subject to which land is held managed or controlled by the Council without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person; or
- (b) as to contravene any covenant or condition (other than a covenant or condition which was subsisting immediately before the date of the gift conveyance or lease to

PART IV
—cont.

the Council) subject to which a gift conveyance or lease of any land has been accepted by or granted to the Council without the consent of the donor grantor vendor lessor or other person entitled in law to the benefit of the covenant or condition.

(7) Nothing in this section shall relieve the Council from liability for damage caused by them to any apparatus in the exercise of the powers of this section and the Council shall so exercise those powers as not to render unreasonably inconvenient the access to any apparatus.

(8) Any difference or dispute which may arise under subsection (7) of this section shall be referred to and determined by an arbitrator to be agreed upon between the parties or in default of such agreement appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

(9) In this section “ apparatus ” means—

- (a) electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by the Central Electricity Generating Board the Southern Electricity Board or the South Western Electricity Board;
- (b) mains pipes or other apparatus belonging to or maintained by the Southern Gas Board or the South Western Gas Board;

and includes any works constructed for the lodging therein of apparatus.

Electronic or
mechanical
accounting
equipment.

25. At any time after the Council have provided any electronic or mechanical accounting equipment for the purposes of all or any of their accounting work they may by agreement with any other person use or permit that other person to use the said equipment for the purposes of that other person and they may make such charges as may be agreed for the use of the said equipment.

Delegation
of powers
to sub-
committees.

26.—(1) A committee lawfully authorised by the Council to exercise any powers of the Council under any enactment may subject to any direction of the Council appoint such sub-committees consisting either wholly or partly of members of the committee as the committee think fit and subject as aforesaid may delegate with or without restrictions or conditions any of their functions to a sub-committee so appointed.

(2) Except in pursuance of powers conferred by any enactment a majority of the members of any such sub-committee shall be members of the Council.

(3) The powers of this section shall be in addition to the powers of any committee of the Council to appoint a sub-committee under any other enactment.

PART V
GENERAL

27. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom the offender is convicted.

Damages and charges to be settled by court.

28. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

Compensation, how to be determined.

29.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

Local inquiries.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry and for that purpose the definition of the expression "department" in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

(3) In this section the expression "Minister of the Crown" has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

30. Proceedings in respect of an offence created by or under any provision of this Act or under byelaws made under any such provision shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Council the highway authority the local authority or the parish council (as the case may be) having an interest in the enforcement of the provision or byelaws in question.

Restriction on right to prosecute.

31. Section 265 of the Public Health Act 1875 shall apply to the Council and a local authority as if any reference in that section to the said Act of 1875 included a reference to this Act.

Protection of members and officers from personal liability.

32.—(1) The sections of the Act of 1936 mentioned in Part I of the schedule to this Act shall have effect as if references therein to that Act included a reference to this Act.

Application of general provisions of Act of 1936.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to Part II (Highways) of this Act.

PART V
—cont.

(3) The section of the Act of 1936 mentioned in Part III of the said schedule shall have effect as if references therein to that Act included a reference to section 6 (Removal of trees etc. from highways) of this Act.

Saving for
town and
country
planning.

33. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Act.

34. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the county fund or out of moneys to be borrowed under this Act.

SCHEDULE

SECTIONS OF PUBLIC HEALTH ACT 1936 APPLIED

PART I

SECTIONS APPLIED GENERALLY

Section	Marginal note
271	Interpretation of "provide".
283	Notices to be in writing; forms of notices &c.
284	Authentication of documents.
285	Service of notices &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

SECTIONS APPLIED TO PART II OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
277	Power of councils to require information as to ownership of premises.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
292	Power to make a charge in respect of establishment expenses.
293	Recovery of expenses &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint &c.
329	Saving for certain provisions of the Land Charges Act 1925.

PART III

SECTION APPLIED TO SECTION 6 OF THIS ACT

Section	Marginal note
287	Power to enter premises.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act 1845 ..	8 & 9 Vict. c. 18.
Public Health Act 1875	38 & 39 Vict. c. 55.
Local Loans Act 1875	38 & 39 Vict. c. 83.
Electric Lighting Act 1882	45 & 46 Vict. c. 56.
Trustee Act 1925	15 Geo. 5 c. 19.
Law of Property Act 1925	15 Geo. 5 c. 20.
Land Charges Act 1925	15 Geo. 5 c. 22.
Children and Young Persons Act 1933 ..	23 Geo. 5 c. 12.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Public Health Act 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Local Government Superannuation Act 1937	1 Edw. 8 & 1 Geo. 6 c. 68.
Ministers of the Crown (Transfer of Functions) Act 1946	9 & 10 Geo. 6 c. 31.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58.
Town and Country Planning Act 1947 ..	10 & 11 Geo. 6 c. 51.
Children Act 1948	11 & 12 Geo. 6 c. 43.
Magistrates' Courts Act 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 55.
Local Government Superannuation Act 1953	1 & 2 Eliz. 2 c. 25.
Local Government (Miscellaneous Provisions) Act 1953	1 & 2 Eliz. 2 c. 26.
Local Authorities (Expenses) Act 1956 ..	4 & 5 Eliz. 2 c. 36.
Matrimonial Proceedings (Children) Act 1958	6 & 7 Eliz. 2 c. 40.
Prevention of Fraud (Investments) Act 1958	6 & 7 Eliz. 2 c. 45.
Highways Act 1959	7 & 8 Eliz. 2 c. 25.

PRINTED BY THE SOLICITORS' LAW STATIONERY SOCIETY, LTD., FOR
SIR JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 1s. 9d. net

PRINTED IN ENGLAND